

Second Amendment to Corporate Membership Agreement

This Second Amendment to the Corporate Membership Agreement (the "Amendment") is made and entered into effective as of April 1, 2023 (the "Amendment Effective Date") by and between Plug & Play LLC, a California limited liability company (also doing business as "Plug and Play Tech Center") whose principal office is located at 440 N. Wolfe Road, Sunnyvale, CA 94085 (hereinafter "Plug and Play") and Mitsubishi Electric US, Inc. (hereinafter, the "Client" or "CLIENT"). Plug and Play and Client are individually referred to as "Party" and jointly as "Parties." Unless otherwise defined, all terms used in this Amendment shall have the same meanings as given them in the Agreement (as such term is defined below). In the event of any inconsistencies between this Amendment and the Agreement, the terms in this Amendment shall control. From and after the Amendment Effective Date, any reference to the Agreement shall mean and refer to the Agreement as amended.

Recitals

WHEREAS, Client and Plug and Play executed that certain Corporate Membership Agreement effective January 1, 2020 (the "Agreement"); and

WHEREAS, Client and Plug and Play executed that certain First Amendment to Corporate Membership Agreement effective April 1, 2022 (the "First Amendment"); and

WHEREAS, Client and Plug and Play desire to amend the Agreement as herein stated.

NOW, THEREFORE, for and in consideration of the mutual covenants and promises herein contained, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto agree as follows:

1. Exhibit A: Fee Schedule Amended. Exhibit A: Fee Schedule is hereby deleted in its entirety and replaced with the following:

"Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Anchor Membership (Smart Cities excluding Mobility) – Segment 1	\$60,000 USD	Start Date: January 1, 2020 End Date: March 31, 2020
Anchor Membership (Smart Cities excluding Mobility) – Segment 2	\$500,000 USD	Start Date: April 1, 2020 End Date: March 31, 2021
Anchor Membership (Smart Cities excluding Mobility) – Segment 3	\$500,000 USD	Start Date: April 1, 2021 End Date: March 31, 2022
Anchor Membership (Mobility) & Ecosystem Membership (Supply Chain) – Segment 4	\$350,000 USD	Start Date: April 1, 2022 End Date: March 31, 2023

Anchor Membership (Mobility) & Ecosystem Membership (Supply Chain) – Segment 5	\$350,000 USD	Start Date: April 1, 2023 End Date: March 31, 2024
Anchor Membership (Mobility) & Ecosystem Membership (Supply Chain) – Segment 6	\$350,000 USD	Start Date: April 1, 2024 End Date: March 31, 2025
Anchor Membership (Mobility) & Ecosystem Membership (Supply Chain) – Segment 7	\$350,000 USD	Start Date: April 1, 2025 End Date: March 31, 2026

Term, Termination and Billing:

The term of this Agreement shall commence on the Effective Date and shall continue until March 31, 2026 (the "Term"). CLIENT may terminate this Agreement early by providing Plug and Play with written notice of its intent to terminate no later than 30 days prior to the end of the then-current Segment. Early termination of this Agreement by CLIENT shall not entitle CLIENT to any refund of fees previously paid nor shall it release CLIENT from the obligation to pay fees that were previously billed pursuant to the Fee Schedule above but remain unpaid as of the date of CLIENT's early termination.

In addition, either Party may terminate this Agreement immediately upon notice to the other Party in the event: (1) the other Party becomes insolvent, has a receiver appointed for its assets or any substantial part thereof, files a petition in bankruptcy or a petition for reorganization or arrangement under bankruptcy laws or has such a petition filed against it which is not dismissed within sixty (60) days; or (2) the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of notice from the non-defaulting Party describing in reasonable detail the nature of the default.

Plug and Play shall invoice CLIENT on the first date of each Segment listed above, in the amount designated for that Segment. Payments made under this Agreement are made in advance and are not refundable. CLIENT shall pay Plug and Play no later than 30 days after receipt of an invoice from Plug and Play.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all (a) sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play) and (b) regulatory fees or surcharges of all governmental authorities, applicable to the services provided to CLIENT under this Agreement."

2. No other amendment. Except as amended herein, the Agreement shall remain in full force and effect.
3. Counterparts. This Amendment may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument.

4. Entire agreement. There are and were no oral or written representations, warranties, understandings, stipulations, agreements, or promises made by either party, pertaining to the subject matter of this Amendment which have not been incorporated into this Amendment. This Amendment supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. This Amendment shall not be modified, changed, terminated, amended, superseded, waived, or extended except by a written instrument executed by the Parties hereto.

(Signature Page Follows)

The parties have executed this Amendment effective as of the date first set forth above.

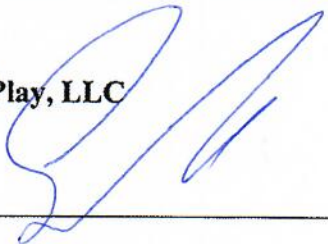
Mitsubishi Electric US, Inc.

By: 

Name: Mike Corbo
Title: President and CEO

Date: 02.10.2023

Plug & Play, LLC

By: 

Name: Saeed Amidi
Title: Founder and Chief Executive Officer

Date: